PART A - GENERAL

1.0 BACKGROUND

1.1 South Coast British Columbia Transportation Authority ("TransLink") is responsible for planning, financing, and operating the public transportation system throughout Metro Vancouver, pursuant to the *South Coast British Columbia Transportation Authority Act*. Additional information about TransLink is available at www.translink.ca.

1.2 TransLink may procure goods and/or services on behalf of itself or other entities as listed in the Event. TransLink and each of these other entities is herein a "Procuring Entity" and together are the "Procuring Entities".

1.3 The Scope of Work/Requirements section of the Event describes the involvement of applicable Procuring Entities in the solicitation.

1.4 TransLink is the agent for each Procuring Entity for this RFP, but not for any contract with another Procuring Entity that arises as a result of this RFP. A successful Participant will be required to enter into a contract with the relevant Procuring Entity if the Procuring Entity chooses to accept the response and TransLink shall not in any way be responsible for such contract unless it is with TransLink directly. The terms and conditions of the agreement for each respective Procuring Entity is attached as part of this RFP.

1.5 In relation to any contract with a Procuring Entity, Participants acknowledge and agree that:

(a) The Procuring Entity does not represent, warrant or guarantee that any Participant will enter into a contract for any or all of the Scope of Work/Requirements mentioned;

(b) To the extent that the Procuring Entity has provided Participants with a bona fide estimated annual usage in the Scope of Work/Requirements, the Procuring Entity does not represent, warrant, or guarantee that it will provide orders up to such estimated annual volume; and

(c) The unit prices under any agreement that may be entered into between the Procuring Entity and a Participant pursuant to the Terms and Conditions of this Event will not be increased, other than in accordance with the terms of such agreement.

2.0 PURPOSE AND SCOPE OF RFP

2.1 Through a Request for Proposals ("RFP") Event, TransLink on behalf of all Procuring Entities may:

(a) seek responses for the supply of the goods, works and/or services identified in the Scope of Work/Requirements section of the Event. The Scope of Work/Requirements section of the Event, with such modifications as may be agreed between the Procuring Entity and the successful Participant, will be incorporated into any contract between the Procuring Entity and the successful Participant; or

(b) establish a list of pre-qualified contractors (the "Pre-Qualified List") to supply goods and/or services to the Procuring Entity as further defined in the Scope of Work/Requirements section of the Event.

2.2 The Scope of Work/Requirements section of the Event will describe whether the purpose of the Event is to seek responses for the supply of goods, works and/or services, in accordance with section 2.1(a) of these terms and conditions, or to establish a Pre-Qualified List, in accordance with section 2.1(b) of these terms and conditions.

2.3 For the purpose of this RFP, references to a Participant are deemed to include potential Participants.

3.0 PRE-QUALIFIED LIST

3.1 Subject to section 3.2, each Procuring Entity may, in its discretion, at any time and from time to time:

(a) use the Pre-Qualified List to identify contractors with relevant expertise in connection with specific projects or distinct tasks and invite any one or more of such contractors to participate in a selection process for one or more contracts;

(b) select one or more contractors from the Pre-Qualified List to directly enter into contracts with the Procuring Entity on the basis of expertise, experience, availability or other relevant criteria;

(c) not select or invite any contractors on the Pre-Qualified List to participate in a selection process for one or more contracts with a Procuring Entity;

(d) employ other means to identify prospective contractors or engage contractors external to the Pre-Qualified List;

(e) notify one or more contractors from the Pre-Qualified List of upcoming projects and

opportunities; or

(f) cancel, extend, expand or make a call to the market-place to renew the Pre-Qualified List.

3.2 The intended use of the Pre-Qualified List identified in section 3.1 of these terms and conditions may change from time to time as the Procuring Entity may, in its discretion, deem necessary, without notice to contractors on the Pre-Qualified List.

3.3 The Pre-Qualified List is for use by the Procuring Entities only and does not imply any contractual or other obligation of a Procuring Entity to the contractor on the Pre-Qualified List. There is no guarantee of any orders pursuant to this RFP, even where a Participant has been included on the Pre- Qualified List, and Procuring Entities are under no obligation to apportion work or allocate contracts equally among those persons on the Pre-Qualified List.

3.4 When making a selection from the Pre-Qualified List for any future opportunity, before being invited to participate in a selection process and/or before the award of any contract, a pre-qualified contractor may be required to furnish evidence satisfactory to a Procuring Entity, in its discretion, of the necessary facilities, ability and financial resources to fulfill the conditions of the contract, or to provide any other information requested by the Procuring Entity.

3.5 The contractors on the Pre-Qualified List are under no contractual obligation arising from this RFP. A contractor may refuse any request for information or to enter into a contract with a Procuring Entity, but if it does so, the Procuring Entity may, in its discretion, remove such contractor from the Pre- Qualified List.

4.0 SCOPE AND QUALIFICATIONS

4.1 The scope, qualifications, experience, information requested, and other requirements applicable to this RFP are detailed in the Scope of Work/Requirements section of the Event.

5.0 LIST NOT BINDING

5.1 A qualified contractor may, by notice in writing, request that a Procuring Entity remove its name from the Pre-Qualified List.

(a) Each Procuring Entity has the discretion to remove a contractor from the Pre-Qualified List for any reason, including unsatisfactory performance under a contract or failing to continue to meet the requirements and qualifications as set out in the Event.

6.0 DEFINITION OF CONTRACT

6.1 Notice in writing to a Participant that it has been identified as a qualified contractor will not constitute a contract nor give such Participant any legal or equitable rights or privileges relative to the requirements set out in this RFP or the selection process to which the Event pertains. Only if a Participant and a Procuring Entity enter into a subsequent written contract will a Participant acquire any legal or equitable rights or privileges. Further, the acceptance of a Participant's qualifications for the purpose of the Pre-Qualified List is not a global acceptance of the Participant's qualification for all purposes but rather signifies only that the Participant has met the minimum requirements set out in the Event.

7.0 REFERENCE DOCUMENTS

7.1 Reference documents applicable to the Event, if any, are listed in the Event and, as identified in the Event, will be:

(a) attached to the Event;

(b) provided directly to Participants by TransLink; or

(c) made available to Participants upon execution of a confidentiality agreement.

7.2 Reference documents are provided for information purposes only. Statistical and other information contained therein may not be exact and may include application of undisclosed assumptions and extrapolations and should not be relied upon by the Participant to any greater extent than is appropriate having regard to the independent analysis, investigations and judgments performed by the Participant. Neither TransLink nor any other Procuring Entity makes any warranties regarding any information contained in the reference documents and shall not be liable for any of the information contained therein.

8.0 PRE-PROPOSAL INFORMATION MEETING

8.1 Where TransLink has identified in the Event it does not intend to hold a pre-proposal information meeting, any Participant may request such a meeting by delivering a written request in accordance with the section 10.1 of these terms and conditions. Despite any such request, TransLink shall be under no obligation to conduct such a meeting.

8.2 If TransLink conducts a pre-proposal information meeting, following the meeting, TransLink will, if it deems necessary, issue an addendum identifying any changes to this RFP.

PART B - PROPOSAL SUBMISSION

9.0 SUBMISSION INSTRUCTIONS

9.1 Participants shall comply with the submission instructions for this Event.

9.2 Responses must be submitted no later than the Due date listed within the Event, or such other time as TransLink may specify by an addendum to the Event (which time is called the "**Due date"**). **Late responses will not be accepted.**

9.3 Responses may be withdrawn or amended at any time before the Due date as identified in the Event.

9.4 If any electronic issues that prevent Participants from submitting responses within two hours before the Due date are identified by TransLink, then TransLink may, in its discretion, choose to extend the Due date even where such identification occurs after the Due date.

10.0 INQUIRIES

10.1 All inquiries and communications should be submitted in accordance with this RFP and any electronic instructions for this Event. TransLink will, if it deems necessary, issue an addendum identifying any changes to the Event arising from inquiries received.

11.0 ADDENDA

11.1 TransLink may at any time, and from time to time, issue written addenda for clarification or to alter or supplement the information provided in the Event.

11.2 TransLink will not be bound by any explanation, clarification or interpretation, whether given orally or in writing, by whomsoever made, that is not incorporated into an addendum to the Event.

11.3 Any addenda issued will be posted in the Event prior to the Due date. It is a Participant's responsibility to check the Event for any addenda issued before the Due date. TransLink assumes no responsibility for notifying Participants of the existence of addenda.

11.4 By submitting a response, the Participant acknowledges receipt of all addenda issued by TransLink.

12.0 REQUIREMENTS

12.1 All requirements utilizing the words "**shall**" or "**must**" are mandatory and responses must substantially comply or fulfill such requirements. Unless otherwise provided in the Event, responses not clearly demonstrating they substantially comply with or fulfill the mandatory requirements may not be considered.

12.2 All requirements utilizing the word "**should**" are desired and the Participant's response to such requirements will be considered in analyzing responses.

12.3 All statements using the words "**may**" or "**might**" are in TransLink and/or the Procuring Entity's discretion.

PART C – CONTENTS OF PROPOSAL

13.0 FORM AND CONTENTS OF RESPONSE

13.1 Responses should be submitted in English. Any portions of a response not in English might not be considered.

13.2 Responses should not include web links or hyperlinks. Web links and hyperlinks might not be reviewed or considered.

14.0 ACCEPTANCE OF TERMS

14.1 The terms and conditions of this Event (including all addenda issued) and the contract terms set out in the Event, are deemed to be accepted by the Participant and incorporated into its response, except to the extent expressly excluded, supplemented or replaced in the response in accordance with the requirements of section 14.2 of these terms and conditions.

14.2 Where a response includes alternatives or modifications to the terms and conditions of the Event, including the Scope of Work/Requirements section of the Event or the contract terms, the Participant should clearly and separately identify:

(a) the suggested alternative or modification, providing a detailed description;

(b) the reason for its inclusion in the response, including the advantages, benefits and risks associated with each alternative and modification;

(c) the schedule impact ascribed to each suggested alternative or modification, provided that if the Participant fails to ascribe a schedule impact, it shall be deemed to have no impact;

(d) the financial impact (the dollar value of the increase or decrease in the contract price) ascribed to each suggested alternative or modification, provided that if the Participant fails to ascribe a value to a particular alternative or modification, it shall be deemed to have a $0 value.

14.3 A Procuring Entity may accept any response submitted, with or without regard to any alternatives or modifications submitted by the Participant.

15.0 CURRENCY

15.1 All monetary amounts (including Participant financial information and pricing) should be expressed in Canadian dollars. If not expressed in Canadian dollars, the response should clearly state the currency. In assessing a response not expressed in Canadian currency, a Procuring Entity will apply the currency conversion rate obtained online at **www.xe.com** as at the Due date (or a reasonable time thereafter) and such converted rate shall be deemed to be the response price.

16.0 FEES AND EXPENSES

16.1 The Participant should provide rates, prices and proposed expenses as identified and in the format shown in the Event.

17.0 PRICE DISCREPANCY

17.1 Where applicable, in the event of a discrepancy in a response between the individual prices and the total amount, the individual prices will govern.

18.0 PARTICIPANT'S OVERALL RESPONSIBILITY

18.1 Where a Participant intends to use other parties to supply any portion of the goods, works and/or services, the Participant should include a list of all such parties in its response and identify the goods, works and/or services to be supplied by such party and their approximate value. Where final selection of such other parties has not been made, the list should identify all potential parties from which the selection will be made.

18.2 Use of other parties constitutes the Participant's assurance as to their competency and acceptance of full responsibility for their goods, works and/or services under any resulting contract between a Procuring Entity and the Participant.

19.0 JOINT SUBMISSIONS

19.1 In the case of joint submissions, one party must assume overall responsibility for communications within the RFP process and the selection process to which the Event pertains and be identified accordingly in the response, but all parties must be jointly and severally responsible for completion of any resulting contract.

20.0 NO COLLUSION

20.1 Each response shall be independently prepared and submitted without connection, knowledge, consultation or comparison of figures or agreement with any other Participant.

20.2 The Participant shall ensure no individual named in its management team is an officer or director of another Participant.

PART D – EVALUATION AND SELECTION

21.0 AGREEMENT BETWEEN TRANSLINK AND THE PARTICIPANT

21.1 The Participant agrees that TransLink's sole obligation is to give consideration to the response in accordance with the Event. In return, the Participant has prepared and submitted its response and agrees:

(a) to negotiate with the intention to enter into a contract with the Procuring Entity during the Acceptance Period for the Event (or such longer period as is agreed between the parties); and

(b) that the response is irrevocable, valid and shall remain open for acceptance during the Acceptance Period for the Event (or such longer period as is agreed between the parties).

22.0 EVALUATION PROCESS

22.1 Responses will be opened privately.

22.2 Responses may initially be evaluated on the non-financial part of the response. Responses meeting TransLink's minimum requirements will be short-listed to receive further consideration. Short-listed responses will then be evaluated on their entire response. The results from both evaluation stages will be aggregated for each Participant.

23.0 ACCEPTANCE OR REJECTION OF RESPONSES

23.1 TransLink reserves the right, in its discretion, to:

(a) accept or reject any or all responses,

(b) accept or reject any part of any response,

(c) accept a response which is not the lowest cost response;

(d) accept a response that deviates from the Scope of Work/Requirements section of the Event or other conditions specified in the Event;

(e) reject a response even if it is the only response received in response to the Event;

(f) split the Scope of Work/Requirements between one or more Participants.

23.2 TransLink further reserves the right, in its discretion, to reject all or part of any response which:

(a) is incomplete, obscure, irregular or unrealistic;

(b) contains unauthorized erasures or corrections;

(c) contains terms, conditions or provisions unacceptable to a Procuring Entity;

(d) is a conditional or qualified offer which is unacceptable to a Procuring Entity;
(e) fails to comply with, or omits, any required or mandatory information; or
(f) is materially non-compliant with the requirements of the Event.

24.0 EVALUATION AND SELECTION

24.1 TransLink will assemble an evaluation team as part of its evaluation process. Members of TransLink's evaluation team may consist of employees, contractors or external partners of TransLink, its subsidiaries or affiliates at TransLink's sole discretion.

24.2 TransLink will have discretion in considering and evaluating responses, judging the acceptability of responses, and awarding or not awarding any contract(s) contemplated by the Event. TransLink is not obliged to provide reasons to any Participant with respect to any use of TransLink's discretion.

24.3 TransLink reserves the discretion to accept the response, or negotiate with one or more Participants, with respect to the response TransLink deems, in its discretion, to be most advantageous. TransLink may take into account the criteria set out in Evaluation Criteria section of the Event.

24.4 Participants will be considered on the basis of the information presented in their response and on the basis of any information obtained by TransLink as a result of any subsequent clarifications, interviews, discussions, negotiations or reference checks, including past dealings with any Procuring Entity.

The evaluation process may evaluate and rank responses applying a variety of methodologies, including a "pass/fail" basis, minimum threshold requirements and/or weightings, pursuant to which responses deemed, in TransLink's discretion, to have failed criteria or not satisfying the minimum threshold will not receive further consideration. TransLink is under no obligation to identify weightings, the criteria that are "pass/fail" or minimum thresholds.

25.0 SHORTLIST

25.1 TransLink may, in its discretion, establish one or more shortlists of Participants for further consideration.

26.0 CLARIFICATIONS AND INTERVIEWS

26.1 Whether or not TransLink elects to establish a shortlist, TransLink may, in its discretion:
(a) conduct interviews, discussions and/or negotiations with one or more of the Participants, either serially or concurrently;
(b) not conduct interviews, discussions and/or negotiations with one or more of the Participants;
(c) terminate interviews or discussions with one or more Participants, for any reason;
(d) seek further information or clarifications from one or more Participants, and may give any Participant an opportunity to correct its response or to cure, regardless of severity, any non-conformity, non-compliance, irregularity or error;
(e) not seek further information or clarifications from one or more Participants;
(f) not disclose to any Participant what information or clarifications were sought from any other Participant; or
(g) seek different information or clarifications from different Participants.

26.2 TransLink shall not be under any obligation to interview, enter into discussions or negotiations with, or solicit or receive further information or clarifications from, any Participant.

27.0 RIGHT TO VERIFY AND INVESTIGATE

27.1 TransLink reserves the right, in its discretion, to verify any or all of the information regarding a Participant, whether contained in its response or not, and to conduct any background investigations TransLink considers necessary in the course of the Event. By submitting a response, each Participant authorizes TransLink to conduct such searches, enquiries and investigations.

27.2 TransLink may consider any information obtained in connection with any searches, enquiries or investigations in evaluating responses, establishing one or more shortlists, or awarding a contract.

28.0 NEGOTIATION

28.1 Each Procuring Entity reserves the right, in its discretion, to engage in discussions and negotiations with one or more Participants, and to conduct such discussions or negotiations serially or concurrently in respect of any of the terms and conditions of the RFP, or the selection process to which the Event pertains, including but not limited to the purpose of:
(a) exploring ways to alter, refine or improve the opportunity or the ultimate arrangement or contract;
(b) attempting to better compare responses;
(c) achieving optimal overall results as judged and perceived by the Procuring Entity; and
(d) negotiating and finalizing contract(s) based on such discussions and negotiations.

28.2 A Procuring Entity will not be obligated to offer any modified terms and conditions offered to, or discussed with, one Participant to any other Participant.

28.3 Each Procuring Entity is entitled to utilize the information or clarifications received or the modified terms and conditions resulting from any discussions or negotiations in selecting the successful Participant and in awarding any contract resulting from this Event.

28.4 The Participant agrees that if a Procuring Entity chooses to negotiate:

(a) the Participant will not take any position in the negotiations less favourable to the Procuring Entity than the position set out in the Participant's response; and

(b) the original response remains open for acceptance and its irrevocability is not affected by such negotiations.

28.5 A Procuring Entity may, in its discretion, terminate the negotiations at any time.

28.6 Without limiting each Procuring Entity's other rights in this RFP, each Procuring Entity may negotiate specific measures which the Procuring Entity, in its discretion, wishes to implement to mitigate, minimize or eliminate any actual, perceived or potential conflict of interest or unfair advantage a Participant may have during the performance of the contract. The Procuring Entity may, as part of its negotiations, require any Participant to agree to such conditions as the Procuring Entity considers to be in the public interest or are otherwise required by the Procuring Entity, in its discretion, to address any such actual, perceived or potential conflicts of interest or unfair advantages. Such conditions may include requirements for confidentiality agreements, declarations, firewalls, ethical barriers, physical separation of records and the use of separate electronic servers. If the Procuring Entity determines, in its discretion, that the awarding of the contract to the Procuring Entity, with or without such additional conditions, would create an unacceptable actual, perceived or potential conflict of interest or unfair advantage in this RFP or would otherwise impair the Procuring Entity's ability to deliver the project, then the Procuring Entity may reject the Participant notwithstanding that the Participant would have otherwise been successful and asked to enter into a contract.

29.0 FINANCIAL STABILITY

29.1 At any time, the Participant may be required to furnish evidence satisfactory to TransLink, in its discretion, that the Participant has the necessary facilities, ability and financial resources to fulfill the conditions of the contract. If the evidence is insufficient or unsatisfactory to TransLink in its discretion, then TransLink, in its discretion, may reject the Response, remove the Response from the Short-list or utilize any other right it has under this RFP.

30.0 CONTRACT

30.1 By submitting a response, the Participant agrees that, should its response be successful, the Participant will enter into a contract with the Procuring Entity substantially in the form included in the Event. However, nothing in this subsection 30.1 guarantees that a Procuring Entity will enter into a contract with any Participant for any or all of the Scope of Work/Requirements. Upon consideration of any alternates or modifications identified in the response as described in section 14.2 of these terms and conditions and the balance of the response and upon successful completion of negotiations, if any, (including with respect to pricing based on revised interpretation and definition of the Scope of Work/Requirements) The Procuring Entity will provide the contract to the successful Participant for execution. Within fourteen (14) days of receipt of the contract for execution and prior to the contract coming into force, the successful Participant must deliver to the TLE Entity:

(a) all copies of the contract fully executed by the successful Participant;

(b) any insurance and any security required by the contract; and

(c) a valid and current WorkSafe BC registration number and clearance letter, if required by the contract;

failing which, the Procuring Entity may, in its discretion:

(d) terminate negotiations with the Participant and hold such Participant liable for any damages suffered by the Procuring Entity; and

(e) commence negotiations with another Participant.

31.0 WAIVER OF CLAIMS

31.1 The Participant hereby waives any claim for damages or costs of any nature against the Procuring Entities (including, without limitation, the cost of preparing and submitting the response, and any anticipated profits and contributions to overhead) arising out of the use by

TransLink or any of the other Procuring Entities of its discretion under the RFP or the selection process to which the Event pertains. Under no circumstances shall the liability of TransLink or any other Procuring Entities, or their respective subsidiaries, any of their directors, officers, employees, agents or consultants under or in connection with this RFP, the Event, or the selection process to which the Event pertains or whatever nature howsoever arising, exceed the reasonable actual, direct costs incurred by the Participant in preparation of its response to a maximum of $10,000.

PART E – ADDITIONAL TERMS & CONDITIONS

32.0 LIABILITY FOR ERRORS

32.1 The Participant acknowledges it is submitting its response at its own risk and the Participant is required to exercise due diligence and undertake whatever investigations and analysis it deems necessary before submitting its response. While each Procuring Entity has made efforts to ensure the accuracy of information in these terms and conditions or the Event, the Participant agrees the Procuring Entities shall not be held liable or accountable for any error or omission in any part of these terms and conditions or the Event, including but not limited to any reference documents.

33.0 CANCELLATION AND OTHER RIGHTS

33.1 TransLink reserves the right to, and may, in its discretion:

(a) issue addenda;
(b) cancel this RFP at any time, before or after the Due date; or
(c) re-advertise for responses.

33.2 TransLink may, in its discretion, elicit offers from other parties (whether or not such parties have responded to the Event) or engage in another selection process, including re-issuing a substantially similar RFP or negotiating with any party if:

(a) only one response is received;
(b) a suitable Participant has not been selected; or
(f) a contract has not been agreed to by the Acceptance Period for the Event.

33.3 Each Procuring Entity reserves the right at any time to enter into a contract for the goods, works and/or services with persons who have not responded to the Event.

34.0 OWNERSHIP OF RESPONSES

34.1 All responses become the property of the Procuring Entities. All writings, programs, plans, drawing and specifications prepared by or on behalf of a Participant (other than those identified in the response as being subject to registered patent or registered trademark protection) may be used by the Procuring Entities for any purpose related to this Event.

35.0 PARTICIPANT'S EXPENSES

35.1 Participants are solely responsible for their own costs and expenses in connection with the Event, including preparing and submitting a response and any subsequent interviews, discussions and negotiations with any Procuring Entity.

36.0 DEBRIEFING

36.1 At the conclusion of the RFP process, the Participant may request a debriefing but TransLink is under no obligation to provide such. If TransLink agrees to provide a debriefing:

(a) TransLink may, in its discretion, require such debriefing to occur on certain terms and conditions specified by TransLink;
(b) any information provided by TransLink during the debriefing is provided on a "without prejudice" basis, cannot be relied on by the Participant for any purpose, and may not represent TransLink's official position with respect to any matter.

37.0 LOBBYING AND INDIRECT COMMUNICATION

37.1 Participants shall not attempt to communicate directly or indirectly with any employee, contractor, officer, director or representative of a Procuring Entity, including the evaluation committee, about the Event other than as expressly permitted in Event, and shall not discuss this Event, the RFP process or the selection process to which the Event pertains at any meeting of the Board of Directors of any Procuring Entity or with the media at any time prior to any Procuring Entity awarding a contract. Any such lobbying or communication will constitute sufficient grounds for disqualification.

37.2 Without limiting the generality of the foregoing, Participants are advised that the conflict of interest policies of each of the Procuring Entities impose restrictions on employees, officers and directors with respect to accepting gifts or receiving any personal benefit other than what they are entitled to as employees, officers or directors.

38.0 GOVERNING LAW

38.1 This RFP will be governed by and construed in accordance with the laws of the Province of British Columbia and within the jurisdiction of the courts of the Province of British Columbia.

39.0 CONFIDENTIALITY

39.1 Any information pertaining to the Procuring Entities, their customers, or individuals that is obtained by the Participant as a result of participation in the Event is confidential and must not be disclosed without the prior written authorization of TransLink.

40.0 FREEDOM OF INFORMATION / PROTECTION OF PRIVACY

40.1 All response information supplied to TransLink by Participants is understood to be supplied explicitly in confidence and TransLink will only communicate such information to other Procuring Entities under a similar obligation of confidence. However, Participants should be aware the BC *Freedom of Information and Protection of Privacy Act* applies to all response submissions and other records, and the Procuring Entities will comply fully with all provisions of that Act.

41.0 NATURE OF RELATIONSHIP

41.1 The successful Participant will be an independent contractor, not a worker, employee, partner or agent of any Procuring Entity. No such relationship or joint venture will be created upon execution of a contract with the successful Participant or by virtue of any portion of the contract having been performed by the successful Participant.

42.0 ELIGIBILITY TO PARTICIPATE IN THIS RFP

42.1 In the event this RFP is being used as a subsequent solicitation following a Request for Information ("RFI") that resulted in a short-list of Participants eligible to participate in this RFP and if for any reason any one of those Participants wishes or requires to make a change to its key team members as identified in its response to the RFI or include new team members (i.e. adding, deleting or replacing team members or making material changes to team organization), the Participant must, prior to responding to this RFP, submit a written request in accordance with section 10.1 of these terms and conditions. Each Procuring Entity reserves the right, at its sole and absolute discretion, to accept or reject any proposed changes to the Participant team.